

Court No. - 10

Case :- WRIT - C No. - 18379 of 2025

Petitioner :- Spencer Retail Limited,

Respondent :- State Of Uttar Pradesh And 3 Others

Counsel for Petitioner :- Kushagra Srivastava, Saumya Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Harvir Singh, J.

1. Even though learned counsel for the petitioner has assailed the bill dated 07.05.2025 on various grounds, she has confined her prayer to the benefits arising from Clause 6.14 of the UP Electricity Supply Code, 2005 and has prayed that if the application for installment is made by the petitioner, the same be sympathetically considered.

2. Sri Abhinav Jaiswal, holding brief of Sri Udit Chandra, learned counsel for the Electricity Department has not opposed the prayer so made. He states that if the petitioner deposits 10% of the entire amount, then the question of installments shall be considered and also the electricity shall be restored.

3. Under such circumstances, without further going into the merits of the case, we provide that if the petitioner deposits 10% of the entire amount demanded vis-a-vis bill dated 07.05.2025 within a period of ten days from today then the application of the petitioner, which would be filed under Section 6.14 of the Code, 2005, shall be considered in accordance with law.

4. As and when the petitioner deposits 10% of the entire amount, the electricity connection shall be restored within 24 hours of the deposit so made.

5. The writ petition is, accordingly, disposed of.

Order Date :- 11.6.2025

P Kesari

(Harvir Singh, J.)

(Siddhartha Varma, J.)